

Tentative Rulings
June 11, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

9. *Navy Federal Credit Union v. Corona*, Case No. CIVSB2511311

Plaintiff's Motion for Judgment on the Pleadings

6/11/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** to allow movant to file a supplemental declaration showing compliance with the meet-and-confer requirement. Importantly, before filing a motion for judgment on the pleadings (JOP), the moving party "shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion" (Code Civ. Proc., § 439.) Here, the declaration submitted in support fails to assert compliance with the statute. (See Hassan Decl.) The movant will file a supplemental declaration at least ten court days prior to the next hearing.

10. *Wagner v. Elias & Co. Staffing, et al*, Case No. CIVSB2331812

Def. Yusen's Motion for Determination of Good Faith Settlement

6/11/12, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion. Here, the movant has set forth evidence of a good faith, arms-length mediation and a settlement pursuant to a mediator's proposal. (See e.g., Hollander Decl.; Goodman Decl. Payab Decl.) The Court finds sufficient basis to approve the good faith settlement pursuant to Code of Civil Procedures section 877.6.) No opposition or argument has been submitted to the contrary.

11. *American Express National Bank v. Villegas*, Case No. CIVSB2400510

Plaintiff's Motion for Entering Judgment Pursuant to Defendant's Default Under Settlement

6/11/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion.

If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court, to settle the case, the court, upon motion, may enter judgment pursuant to the terms of the settlement. (Code Civ. Proc., § 664.6; *Skulnick v. Roberts Exp., Inc.* (1992) 2 Cal.App.4th 884, 889, review denied.)

Here, Plaintiff and Defendant settled the case by entering into a written settlement agreement wherein the parties agreed that no judgment would be entered against Defendant so long as Defendant paid an agreed settlement amount per monthly installments. (Penuela Decl., ¶14 &

Exh 1.) However, Defendant has failed to pay that agreed-upon amount, despite repeated attempts by Plaintiff to contact. (*Id.*, ¶¶6-7 & 10.)

12. *Peimbert v. Perez, et al*, Case No. CIVSB2412010
Defendant's Motion for Leave to File an Amended Answer
6/11/26, 9:00 a.m., Dept. S-17

This matter was set on shortened time, to allow further briefing, following an ex parte application brought on April 22, 2026

The Court is inclined to **DENY**. The Court will hear argument on whether further continuance is advisable.

Here, the initial matter was brought as an *ex parte* application for leave to file an amended answer on April 22, 2026. The supporting declaration did not include a proposed amended answer at that time. (See Lopez Decl., filed April 21, 2026.)

The matter was continued to allow the parties to continue to meet and confer and also for further briefing. Importantly, the opposition to the *ex parte* cited failure to comply with California Rules of Court, rule 3.1324. That Rule requires specification of the provisions that are proposed to be added, deleted, or amended. Further, a copy of the proposed amended answer was required. (Code Civ. Proc., § 473(b).) Despite these shortcomings, no further briefing has been submitted since the initial *ex parte* hearing on April 22, 2026.
